

Contested Liberalisms in Mexico: Popular Liberalism, the Fourth Transformation, and the Struggle over Constitutional Identity.

Abstract

Mexico's Cuarta Transformación (4T) is usually read as one instance of a global illiberal turn. This article argues instead that the Mexican constitutional conflict is internal to the liberal-republican tradition: rival projects each claim the mantle of liberalism to define who counts as 'the people'. Drawing on scholarship on popular and plebeian liberalism in Spanish America, it shows that the 4T advances by appropriating a popular, Juarista liberalism against a proprietary one it codes as neoporfirista. Four frameworks — comparative law, legitimation theory, alterity and imagined communities — are applied to presidential discourse, three constitutional reforms and political cartoons, and synthesised through a Constitutional Legitimacy Vector. The appropriation reconfigures who counts as 'the people' and why citizens obey, producing a structural decoupling resistant to procedural resolution. The case refines the theory of illiberalism: Latin American populism can operate through appropriation of the liberal lineage, not its negation.

Keywords: Popular Liberalism; Plebeian Liberalism; Constitutional Identity; Constitutional Legitimacy; Populism; Fourth Transformation (4T); Mexico.

1. Introduction

Definition of the topic and the research problem

Since 2018, Mexico's Cuarta Transformación (4T) has been read, in much of the comparative literature, as one more instance of a global illiberal turn: a popular-majoritarian project that erodes autonomous institutions, concentrates executive power and recasts pluralist checks as obstacles to 'the people's will'. That reading is not wrong, but it is incomplete, and its incompleteness is where this article intervenes. To classify the 4T as simply 'illiberal' assumes that its antagonist—liberalism—is a stable, singular thing against which the project defines itself. The Mexican case resists that assumption. Andrés Manuel López Obrador did not govern

against the liberal tradition; he governed by claiming it—invoking Juárez and the Reforma, denouncing his opponents as neoporfiristas, and presenting his reforms as the recovery of a popular liberalism betrayed by a technocratic, proprietary one.

This distinction is not a rhetorical nicety. It determines what kind of phenomenon the 4T is, what the comparative literature can learn from it, and what defending constitutional democracy in Mexico would actually require. If the 4T were the negation of liberalism, the response would be the familiar one: defend liberal institutions against an anti-liberal force. But if the 4T is a rival claimant to the liberal inheritance—one that can quote the Constitution's own sovereignty clause and the historical authority of Juárez—then the contest cannot be won by invoking 'liberalism' or 'the Constitution' as if their meaning were settled. The meaning is precisely what is in dispute.

This article therefore reframes the problem. The contemporary Mexican conflict is not liberalism versus its negation, but a struggle internal to the liberal-republican inheritance itself: rival projects that each claim the mantle of liberalism in order to define who counts as 'the people' and what counts as a legitimate constitution. The Constitución Política de los Estados Unidos Mexicanos (CPEUM) is not merely a legal framework in this struggle; it is the contested ground on which competing definitions of the nation are fought out—a multivocal text whose very provisions, as later sections show, supply ammunition to both sides.

Research question and contribution

The central question is: how is Mexican national identity constituted through competing appropriations of the liberal-republican tradition, and how does this contest reshape constitutional legitimacy? Three subordinate questions follow. First, how does the polysemy of 'liberalism' in the Mexican and broader Spanish-American tradition make rival claims to it possible? Second, through what mechanisms does the 4T convert a populist appropriation of popular liberalism into constitutional change? Third, with what consequences for the resilience of constitutional democracy?

The specific contribution is to refine the comparative theory of illiberalism through the Latin American case. Where the dominant frameworks treat illiberalism as opposition to liberalism, Mexico shows a populism that advances by appropriating the liberal lineage rather than rejecting it. This distinction explains why the 4T retains constitutional and electoral forms while hollowing their pluralist content, and it recovers a body of Latin American scholarship—on popular and plebeian liberalism—that the 'illiberalism' label renders invisible. The

academic gap addressed is thus precise: the literature on constitutional populism and democratic erosion has tended to import a binary (liberal vs. illiberal) calibrated on European and US cases, and applying it unmodified to Mexico mistakes a contest within liberalism for a contest against it.

The argument proceeds in eight steps: § 2 builds the polysemy framework; § 3 sets out method and instruments; § 4 reconstructs the contested lineage from 1857 to neoliberalism; § 5 analyses the 4T as an appropriation of popular liberalism; § 6 examines the reforms and their social effects; § 7 anchors a foresight analysis in the constitutional text; § 8 concludes.

2. The Polysemy of Liberalism: A Framework

Liberalism was never one thing

The error this article seeks to avoid is one a foundational literature has already diagnosed: treating ‘liberalism’ as a unified doctrine with a single historical trajectory. José Antonio Aguilar Rivera has shown, across a sustained body of work, that Mexican liberalism was internally plural from its origins—a set of competing idioms rather than a coherent programme, marked by anomalies and silences that made the nineteenth-century constitutional project structurally fragile (Aguilar Rivera, 2001, 2010). The liberal constitutions of the early republic, he argues, omitted emergency powers and left the separation of powers underdefined, so that the executive repeatedly operated beyond the letter of the law—a defect of design, not merely of circumstance.

This matters for the present argument because it dissolves the image of a single liberalism that either triumphs or is negated. If liberalism was always several things—a doctrine of individual rights, a programme of economic modernisation, a rhetoric of popular emancipation, a defence of property—then a political project can reject one of its registers while embracing another, and still be operating within the tradition. That is exactly what the 4T does.

Popular and plebeian liberalism

Nineteenth-century Spanish-American liberalism had a popular register that elite intellectual history long obscured. Francisco Gutiérrez Sanín’s study of the mid-century movimiento plebeyo recovers a liberalism made and lived from below—by artisans and urban popular sectors who appropriated liberal language for their own ends, against the propertied liberalism of elites (Gutiérrez Sanín, 1995). Though his case is Colombian, the pattern he names—the

popular appropriation of liberal vocabulary as a weapon against oligarchic liberalism—is a structural feature of the region’s tradition, and it is the missing term that makes the 4T legible.

When López Obrador opposes a *liberalismo del pueblo* to a *liberalismo de la oligarquía*, he is not inventing a rhetoric; he is reactivating a genuine and historically deep cleavage within liberalism itself. The plebeian-liberal frame allows a leader to claim Juárez and the Reforma—the canonical liberal patrimony—while attacking the institutions that contemporary procedural liberalism regards as liberalism’s achievements. The contradiction is only apparent: it dissolves once one recognises that ‘liberalism’ names rival inheritances, not one.

This polysemy has colonial roots. The vocabulary of *lo liberal* in the Hispanic world descends in part from the pactist and natural-law thought of the Second Scholastic—Vitoria, Suárez, Molina, Mariana—in which legitimate authority rests on a compact with the community and may, in extremis, be reclaimed by it (Aguilar Rivera, 2012; Aguilar and Rojas, 2002). The republican strand of this inheritance, recovered in the intellectual history of Aguilar and Rojas and in the classic syntheses of José Luis Romero and Tulio Halperin Donghi, supplies a second idiom—popular sovereignty, civic virtue, the *buen gobierno*—on which both contemporary projects draw selectively. The point is not that the 4T is faithful to Suárez or to Juárez, but that the tradition it raids is genuinely polyvalent, and that this polyvalence is the condition of the contest.

Against the illiberalism-as-negation model

The comparative literature on illiberalism (Laruelle, 2023; Kubik, 2024; Mudde, 2004; Zakaria, 1997) and on populism’s relation to liberal democracy (Mudde and Rovira Kaltwasser, 2012; Rosanvallon, 2020) remains indispensable for naming the 4T’s majoritarian and anti-pluralist features. Laruelle’s account of illiberalism as a cultural and ideological response to liberalism, Mudde’s thin-centred populism dividing society into pure people and corrupt elite, and Zakaria’s diagnosis of illiberal democracy all describe real features of the Mexican case.

But applied to Mexico without the corrective above, this literature produces the very reductionism the present study rejects: it casts the conflict as liberalism versus anti-liberalism and thereby misses that both poles speak liberalism’s language. The analytical pay-off of the polysemy framework is that it relocates the conflict—from between liberalism and its enemies to within a contested liberal-republican tradition whose meaning is the prize. This is also where the Mexican case feeds back into the theory: it shows that ‘illiberalism’ is not always the

negation of liberalism but can be one of its internal idioms turned against another, a refinement that the European-calibrated literature does not anticipate.

3. Methodology

This is a qualitative, historically grounded case study built around frame analysis: the systematic reconstruction of how political actors package constitutional meaning into competing interpretive frames. The object—the contest over the meaning of liberalism and the nation—is interpretive, and so calls for an interpretive method rather than a quantitative one. The design makes that choice explicit and applies it, rather than merely declaring an orientation; the unit of analysis is the interpretive frame, and the analytical aim is to trace how rival frames mobilise the same constitutional and historical materials toward incompatible ends.

Corpus and case selection

The analysis draws on three deliberately bounded bodies of evidence, selected by explicit criteria. First, presidential discourse: a purposive sample of López Obrador's *mañaneras* and set-piece addresses (2018–2024), selected where they thematise the Constitution, autonomous institutions (the Instituto Nacional Electoral, INE; and the Suprema Corte de Justicia de la Nación, SCJN), or the liberal lineage (references to Juárez, the Reforma, neoporfirismo). The selection criterion is topical relevance to constitutional legitimacy, not representativeness of all presidential speech; the sampling logic is theoretical rather than statistical, targeting the utterances in which the intra-liberal frame is most explicitly articulated.

Second, constitutional reforms and conflicts: three episodes are selected as most-likely sites of intra-liberal contestation—the electoral-authority reform targeting the Instituto Nacional Electoral (INE), the judicial reform targeting the Suprema Corte de Justicia de la Nación (SCJN), and the constitutionalised expansion of the military's civilian role—because each pits a procedural-liberal reading of the Constitution against a popular-liberal one. The most-likely-case logic is appropriate here: if the intra-liberal interpretation fails to illuminate precisely the episodes where the two liberalisms collide most directly, the thesis would be in serious doubt; that it does illuminate them is correspondingly informative.

Third, political cartoons are treated not as illustration but as condensed interpretive frames—compressed visual arguments about constitutional identity. Each is analysed for the frame it mobilises (who is 'the people', who the usurper), and each is presented as a numbered figure

with source, date and authorisation, per the journal's figure conventions. They function as data on how the contest is rendered legible to a mass public, not as decorative matter.

Mexico as a civil-law order: a note on the legitimacy vector

Mexico belongs unambiguously to the civil-law tradition — codified, Roman-derived, transmitted through the Spanish colonial order — and not to the common-law tradition of judicial precedent (Glenn, 2014). Mexican courts do not operate under *stare decisis*; statute and code are primary, and *jurisprudencia* (binding precedent arising from consistent rulings across a defined series of cases) is a civil-law mechanism of jurisprudence *constante*, not an importation of common-law adjudication. The legitimacy vector used here is therefore reduced to the sources that actually operate in the Mexican civil-law setting: the common-law component is omitted, its functional analogue folded into the reason component, understood as the legitimacy of technical-codified, law-bound, procedural authority. The Constitutional Legitimacy Vector (CLV) is applied in § 5; its erosion through the reforms is documented in § 6.

Analytical instruments

Two instruments structure the interpretation. The first is the CLV, which decomposes each project's claim to obedience into the sources operative in the Mexican setting: tradition (the authority of historical-revolutionary lineage), consent (popular sovereignty and electoral or plebiscitary mandate), reason (the technical-codified authority of statute, code and binding *jurisprudencia*, including the independence of courts and autonomous bodies), and authority (the personal, charismatic standing of the office-holder). A divinity component, salient in some constitutional orders, is largely absent at the level of Mexican constitutional doctrine and is noted only where moral-traditionalist registers borrow its tone. Making the vector explicit allows the analysis to specify which sources each appropriation of liberalism foregrounds, and how shifts among them bear on constitutional resilience.

The second instrument is an alterity axis, after Todorov, which tracks how each project draws the boundary of 'the people'—through recognition, assimilation, accommodation, exclusion or pluralisation—since every definition of a national 'we' simultaneously constructs an 'other'. Each substantive claim in the analysis is referred to an identifiable mechanism—constitutive (creating a status or category), reproductive (maintaining it), transformative (changing it) or disruptive (breaking it down)—rather than left at the level of description, so that the account moves from what happens to how it happens. The full application of both instruments appears

in § 5; Table 1b (§§ 5–6) maps their interaction with the sources of legitimation of Pegoraro and Rinella.

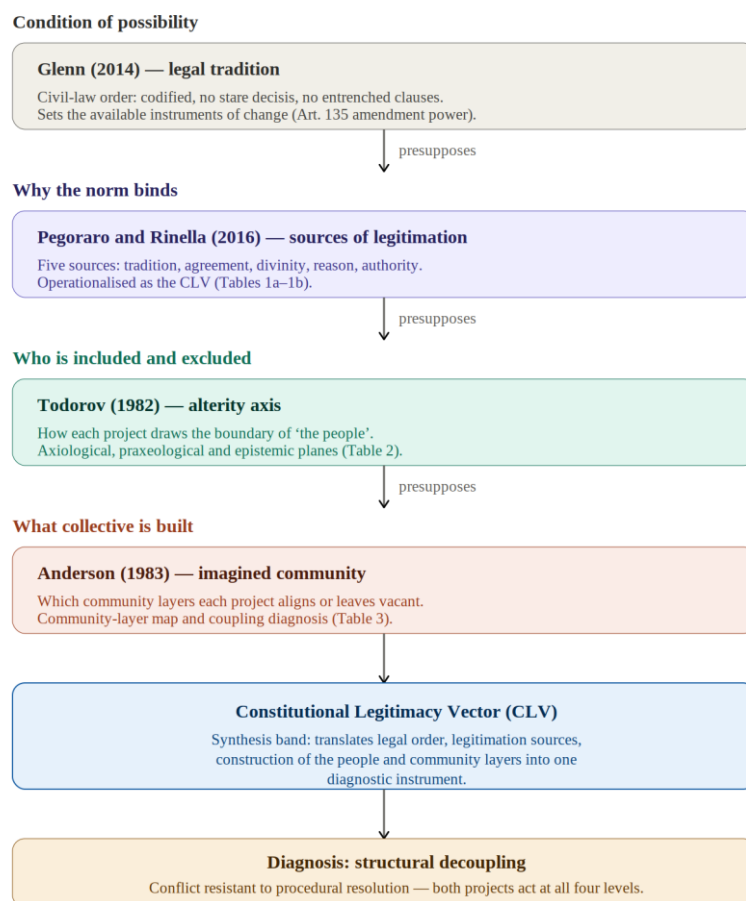
Analytical architecture: four frameworks in sequence

This study applies four analytical frameworks sequentially, each addressing a question the others cannot answer, and each presupposing the answer of the preceding one. The sequence constitutes the article's interpretive architecture (Figure 3). Glenn (2014) establishes the condition of possibility: Mexico belongs to the civil-law tradition — codified, without *stare decisis*, without entrenched unamendable clauses. This determines which instruments of constitutional change are available (Article 135, the amendment supermajority) and which are not (entrenchment, precedent-based protection). Without knowing the type of legal order, one cannot identify what counts as 'breaking the rules' and what counts as 'playing within them'.

Pegoraro and Rinella (2016) identify five sources of legitimation that make the norm binding: tradition, agreement, divine authority, reason, and political authority. Each is activated differently by the two liberalisms, making explicit why two projects can cite the same article and produce incompatible obediences; the CLV operationalises this (Tables 1a–1b). Todorov's alterity axis then shows who is included and who excluded by each mode of obedience; and Anderson's community-layer analysis shows what collective is being built by that construction of belonging (Table 3).

The CLV synthesises all four levels: it translates the type of legal order (Glenn), the operative sources of legitimation (Pegoraro and Rinella), the construction of the people (Todorov) and the community layers being addressed (Anderson) into a single diagnostic instrument, making legible what each framework alone cannot state: the conflict is structurally resistant to procedural resolution because both projects operate simultaneously at all four levels, answering each question in mutually incompatible ways.

Figure 3. Analytical architecture of the study: four complementary frameworks and their synthesis through the Constitutional Legitimacy Vector.



Source: author's elaboration.

§ Reference system

To facilitate navigation of the article's analytical architecture, all cross-references use the section mark (§) and its plural (§§). A single § denotes one specific section; doubled §§ denotes a range or multiple sections. The eight sections are assigned fixed marks: § 1 Introduction, § 2 Framework, § 3 Methodology, § 4 Genealogy, § 5 Analysis, § 6 Reforms and Effects, § 7 Foresight, § 8 Conclusion. In all tables, § references embedded in cells or footnotes direct the reader to the section where the claim is demonstrated. The notation is consistent throughout: tables, paragraph transitions, the abstract and the conclusion all use the same system, so the article may be read linearly or by following the § trail.

The instrument that operationalises the legitimation analysis is declared here and applied in § 5. Table 1a sets out Pegoraro and Rinella's five sources in their general form — the basis of the bond in each case and its anchor in the constitutional text — before Table 1b (§§ 5–6) applies them to the two rival liberalisms.

Table 1a. Pegoraro and Rinella’s sources of constitutional legitimacy (§ 3). Instrument declared; application in Table 1b (§§ 5–6).

Source of legitimation (P/R, Ch. II)	Basis of the bond — why the citizen obeys	CPEUM anchor
TRADITION “Do what the fathers did”	Obligation from historical continuity; the past validates the present	Art. 39 (sovereignty in the people, original DOF 05-02-1917); 1917 Constituent Congress Preamble
AGREEMENT “Behave according to the pacts” (pacta sunt servanda)	Norm binds because recipients consented; autonomy of the will	Art. 40 (representative, democratic, federal Republic); Art. 135 (supermajority amendment rule)
DIVINE / RELIGIOUS “Obey God”	Transcendent authority; the sacred sanctions the norm	Arts. 24 and 130 (freedom of religion; strict Church/State separation — the Reforma’s constitutional legacy)
REASON “Follow reason” (responsa, jurisprudence, expertise)	Authority of the sage, judge, or expert; rational, law-bound argumentation — primary source in a civil-law order (§ 3)	Arts. 94–107 (judiciary; jurisprudencia); Art. 28 (autonomous bodies, partially extinguished DOF 20 Dec 2024); Art. 1 (human rights via courts)
AUTHORITY “Obey the leader” (political/ideological law)	The apex translates political values into norms; citizens obey as the group’s voice. Ehrlich: ‘conscious of serving the ruler, and only sometimes of serving the group’	Art. 80 (executive power); Art. 89 (presidential faculties); Art. 39 (‘all public power emanates from the people’ — textual hinge fusing leader and people)

Source of legitimation (P/R, Ch. II)	Basis of the bond — why the citizen obeys	CPEUM anchor
<i>Common law “Follow precedent” [NOT APPLICABLE]</i>	<i>N/A — Mexico is a civil-law order without stare decisis. Functional analogue (binding jurisprudencia) classified under Reason (§ 3)</i>	<i>Art. 94 as reformed DOF 15 Sep 2024: immediate binding effect of SCJN rulings — paradoxically enacted to dissolve the prior jurisprudencia system</i>
SYNTHESIS Legitimacy profile	—	CPEUM encodes all five sources: Art. 39 (tradition + agreement + authority); Arts. 94–107 (reason); Arts. 24, 130 (secularism). Multivocality is the structural condition of the contest (§§ 2–7).

Sources: Pegoraro and Rinella, Fuentes constitucionales (Ch. II); CPEUM 1917/2026; Glenn (2014). ‘Reason’ replaces the common-law component per the civil-law character of the Mexican order.

4. A Contested Lineage: From 1857 to Neoliberalism

The nineteenth century: liberalism as a field of struggle, not a programme

Mexican national identity was forged in the nineteenth century not by a triumphant liberalism but by a liberalism already divided against itself. The Reforma and the 1857 Constitution—the Ley Juárez, the Ley Lerdo and the Ley Iglesias—enshrined individual rights, secularism and legal equality against fierce conservative and clerical resistance (Zea, 1968). But the liberal victory was never a single thing. It contained at least two idioms in tension: a popular liberalism, lived from below by communities and urban sectors who read the Reforma as their own emancipation, and a proprietary, order-oriented liberalism that would later harden into the positivism of the Porfiriato.

The Porfiriato is better read as one appropriation of the liberal lineage — an authoritarian-positivist one whose marginalisation of the popular-liberal register provoked 1910 (Zea, 1968; Aguilar Rivera, 2010). The 4T's charge of neoporfirismo is therefore not an arbitrary insult but a claim about lineage: its opponents are said to descend from the order-and-progress liberalism that betrayed the popular one. This is the historical referent that makes the contemporary frame intelligible rather than merely rhetorical.

1917: social rights and the multivocal Constitution

The 1917 Constitution emerged from that rupture and inscribed the division into the founding text itself. Article 27 (land and national resource sovereignty), Article 123 (labour rights) and Articles 3 and 130 (secular education, restriction of the Church) fused liberal guarantees with revolutionary social commitments. The Constitution was thus multivocal from birth: it could be read as a liberal-pluralist charter, as a social-revolutionary mandate, or as a vehicle for national-popular unity. This is not a defect to be resolved but the structural condition that makes the contemporary contest possible; the text was designed to hold competing idioms together, and it still does.

The Partido Revolucionario Institucional (PRI): appropriation as statecraft

Under the Partido Revolucionario Institucional (PRI, 1929–2000), one reading prevailed: a national-popular one, fused with corporatism and one-party control. The PRI appropriated the liberal-revolutionary lineage selectively — foregrounding popular sovereignty while hollowing pluralist content — and deployed constitutionalism to legitimise power rather than limit it. The 4T inherits this grammar: selective appropriation of the founding text for a national-popular project is a recurrent Mexican statecraft. What changed is the antagonist — no longer the Church or the conservatives but the autonomous institutions built during the democratic transition.

Neoliberalism: the proprietary turn and its backlash

From the 1980s, the Salinas and Zedillo reforms—privatisation, GATT (General Agreement on Tariffs and Trade) and NAFTA (North American Free Trade Agreement), austerity, the 1992 reform of Article 27 dismantling the ejido—reactivated the proprietary, market liberalism of the Porfirian register, now in technocratic dress. Economic liberalisation deepened inequality and eroded the social compact of 1917; trust in institutions declined as parties became identified with policies that prioritised macroeconomic indicators over social rights.

The consequence is that neoliberalism's proprietary appropriation of liberalism discredited the word 'liberal' in popular usage, and cleared the ground for a project that would reclaim the other liberalism—the popular, Juarista one—against it. 'Neoliberal' and 'liberal' had fused in public discourse into a single pejorative. López Obrador's ascent is the backlash this fusion invited, and his recovery of Juárez is intelligible as the reclaiming of a liberal patrimony that neoliberalism had, in effect, ceded. § 5 analyses how this reclaiming operates as an appropriation of popular liberalism within the current constitutional order.

5. The 4T as Appropriation of Popular Liberalism

Not anti-liberal, but a rival liberal claimant

The defining error in reading the Cuarta Transformación is to treat it as the negation of liberalism. López Obrador does not repudiate the liberal-republican tradition; he claims it. He aligns the 4T with Independence (1810), the Reforma (1857) and the Revolution (1910), casting himself as heir to Juárez and denouncing his opponents as neoporfiristas—that is, as the proprietary, elite liberalism that betrayed the popular one. This is precisely the plebeian-liberal move that Gutiérrez Sanín (1995) identified in the nineteenth century: the appropriation of liberal language by and for the popular sectors, against the liberalism of property and privilege.

The evidence is in the discourse itself, and it is worth quoting because the wording carries the argument. From his inauguration onward, López Obrador condensed his ethic of government into a triad—'no mentir, no robar, no traicionar al pueblo' ('do not lie, do not steal, do not betray the people')—that fuses moral rectitude with fealty to a singular collective subject, el pueblo. That subject is qualified as 'el pueblo sabio y bueno' ('the wise and good people'), and the project's priority is captured in the campaign maxim 'por el bien de todos, primero los pobres' ('for the good of all, the poor first'). None of these is anti-liberal in form; all of them locate legitimacy in the moral authority of the popular subject rather than in procedure or institutional mediation.

In the mañaneras—the daily presidential press conferences that functioned as the principal stage of the sexenio—constitutional and institutional conflicts were routinely narrated through the figures of the liberal pantheon: Juárez as the model of the austere, popular statesman; the Reforma as the precedent for confronting entrenched privilege; the Porfiriato as the warning of what proprietary liberalism becomes. The 4T's antagonist, in this telling, is not liberalism but

one kind of liberalism, recoded as antinational and anti-popular. Recognising this is what allows the analysis to explain, rather than merely condemn, the project's capacity to retain democratic and constitutional legitimacy while contesting liberal institutions: it speaks, throughout, in the grammar of popular liberalism.

Reading the appropriation through the Constitutional Legitimacy Vector

Applying the CLV — which operationalises Pegoraro and Rinella's five sources of legitimation within the civil-law order established by Glenn — makes the structure of the 4T's claim explicit. Its legitimacy rests overwhelmingly on two components—consent (popular sovereignty, expressed through the 2018 mandate and through referendums and consultations) and tradition (the Juarista-revolutionary lineage)—fused into a single moral-historical claim in which the popular will and the historical mission of the nation coincide. Authority, the charismatic and personalised standing of the presidency, amplifies both, concentrating the interpretation of the national project in a single figure.

Strikingly weakened is the reason component—the technical-codified authority of statute, autonomous institutions and the courts, which in a civil-law order is the principal counterweight to majoritarian will. The 4T codes this component as elitist neoliberal proceduralism: the INE's technical independence, the SCJN's review power and the autonomous regulators' expertise are reframed not as guarantees of legality but as instruments of the proprietary liberalism the project opposes. The resilience implication follows directly: a legitimacy claim concentrated in consent-plus-tradition-plus-authority, and actively eroding the reason component, removes the law-bound, expert and counter-majoritarian checks that allow a constitutional order to absorb disagreement. This is the mechanism by which a project that remains formally constitutional becomes substantively majoritarian.

At this point a legitimate objection must be met rather than deflected: if the appropriation of popular liberalism results in the systematic suppression of the reason component — dismantling judicial independence, capturing electoral authority, extinguishing autonomous regulators — does the intra-liberal reading not collapse back into the illiberalism it set out to displace? Is Mexico simply illiberalism dressed in liberal vocabulary? The threshold in question, this article holds, is one of degree along a shared continuum, not a change of kind. Three considerations sustain the claim. First, the erosion is internal to the tradition: the reason component is attacked not from an avowedly anti-liberal position but in the name of another liberal source — consent, reactivated as popular sovereignty under Article 39 — so the conflict

remains a redistribution among the CLV's own components, not a repudiation of the vector. Second, the erosion works through, not against, the constitutional form: Article 135 is used, not suspended, which an illiberalism-as-negation would not need to do. Third, the label 'illiberal' would foreclose the very question that makes the case productive — how far a legitimacy claim can shift toward consent-plus-tradition-plus-authority before the order loses the counter-majoritarian capacity to absorb disagreement — by issuing in advance a verdict that is properly an empirical one. The intra-liberal frame keeps that gradient visible: the 4T occupies a position of advanced reason-suppression within the liberal tradition, and whether it tips into an order that comparative scholarship would, on its effects, class as illiberal is a trajectory question — the distance between the resilient and the fragmented paths of § 7 — not a definitional one. What the case refines is thus not the boundary between liberal and illiberal but the internal metric of liberal orders: the point at which favouring one liberal source at another's expense produces, in effect if not in self-description, what the literature files under democratic erosion.

Mechanisms: how appropriation becomes constitutional change

Three mechanisms convert the rhetorical appropriation into institutional fact. The first is moral reframing, a constitutive mechanism: constitutional questions are recast as moral struggles between pueblo and oligarquía, so that procedural objections appear as elite self-interest rather than as defences of legality. The *mañaneras* are the daily engine of this reframing, establishing and re-establishing the categories 'people' and 'elite' as the master frame through which all constitutional conflict is read.

The second is the delegitimation of counter-majoritarian institutions, a disruptive mechanism: the INE and the SCJN are recoded as neoporfirista relics, so that weakening them reads as completing the liberal-popular revolution rather than betraying liberalism. Because the institutions are framed as descendants of the proprietary liberalism the Reforma fought, their erosion can be presented as continuity with the liberal tradition, not rupture from it—a rhetorical achievement that the illiberalism-as-negation model cannot explain.

The third is plebiscitary validation, a reproductive mechanism: referendums and consultations convert the consent component of the CLV into a recurring legitimization ritual that bypasses institutional mediation, repeatedly re-grounding the project in a direct expression of popular will. Each consultation renews the claim that the executive, not the autonomous institutions, embodies the sovereign people—thereby reproducing the legitimacy structure analysed above.

§ 6 shows how these three mechanisms materialise in the constitutional reform sequence of 2024–2026.

The boundary of ‘the people’: the alterity axis

Every appropriation of liberalism is simultaneously a construction of alterity, and Todorov’s analysis of how the self relates to the other supplies the instrument for specifying it. In *La conquista de América: el problema del otro* (1982), Todorov distinguishes three planes on which the relation to the other is organised: an axiological plane, a value judgement in which the other is held to be good or bad, equal or inferior; a praxeological plane, an action in which one either identifies with the other and adopts the other’s values, or imposes one’s own image on the other (assimilation), or remains indifferent; and an epistemic plane, a matter of knowledge, in which one knows or refuses to know the other. The power of the scheme is that the three planes do not move together: one can value the other highly yet refuse to know them, or claim to know them while subordinating them.

Read through these planes, the two liberalisms construct their ‘other’ in instructively different ways, and neither is simply inclusive. The 4T’s ‘we’ is the *pueblo bueno*; on the axiological plane it casts its other — the *oligarquía corrupta* and the *constituciones* coded as foreign-influenced — as morally bad rather than merely different. On the praxeological plane its dominant mode is assimilation: dissenters are not engaged as equals but redescribed as outside the authentic nation. Indigenous demands occupy the most revealing position: valued highly at the symbolic centre of the national ‘we’, yet assimilated to the unitary project rather than recognised in their autonomy. The procedural-liberal project tends on the axiological plane to treat the popular-national majority not as morally bad but as epistemically deficient — a public to be informed, protected from its own majoritarian impulses by counter-majoritarian institutions. Its characteristic failure is epistemic: a refusal to know the popular subject on its own terms, which is precisely the opening the 4T exploits. Each liberalism has its own mode of inclusion and its own mode of exclusion; the contest is not between an inclusive and an exclusive project but between two differently bounded constructions of the national ‘we’. Table 2 sets out the comparison.

Table 2. Two liberalisms and their construction of the other (after Todorov, 1982).

Todorov plane	Popular liberalism (4T)	Procedural liberalism
Axiological (value)	The other (the ‘oligarchy’ and its instruments) is judged morally bad, not merely different	The other (the popular majority) is judged not bad but epistemically deficient, to be guided
Praxeological (action)	Assimilation: the people folded into one moral-national subject; dissenters redescribed as outside the nation	Containment: the majority bounded by counter-majoritarian institutions and procedure
Epistemic (knowledge)	Claims intimate knowledge of ‘the people’ while refusing to know its internal plurality	Characteristic failure: refuses to know the popular subject on its own terms
Mode of inclusion	Moral-national belonging: those faithful to the popular project	Rights-bearing citizenship: equal individuals under law
Mode of exclusion	Moral exclusion: dissent recoded as betrayal / antinational	Procedural exclusion: the majority distrusted, distanced from direct rule

Author’s elaboration applying Todorov’s axiological, praxeological and epistemic planes.

The analytical pay-off is twofold: the conflict is intractable because each project can credibly accuse the other of exclusion (each does exclude, along a different Todorovian plane), and disagreement about institutional design has been recast as disagreement about national belonging — which a constitution cannot easily mediate.

Which community is being addressed? The community-layer map

The Todorovian analysis of alterity raises a further question that it cannot itself answer: not only who is excluded, but what type of community is being constituted by each project in the first place. When the 4T says ‘the people’, it is not deploying a legal category but mobilising simultaneously a community of belonging (a historical-moral ‘we’ with a Juarista lineage,

where membership is earned through moral fidelity, not legal status), an imagined community in Anderson's sense (a collective that recognises itself in the narrative of the four transformations without its members ever meeting), a moral community (bound by the ethic of 'no mentir, no robar, no traicionar al pueblo'), and a community of destiny (whose future is collectively at stake in every constitutional reform). When procedural liberalism says 'citizens', it is addressing a juridical community (those who recognise the Constitución Política de los Estados Unidos Mexicanos (CPEUM) as a shared framework, regardless of identity or narrative) and an epistemic community (those who defer to the technical knowledge institutionalised in autonomous bodies). Neither appeal is wrong; both are genuine modes of constituting a political collectivity.

Table 3 maps which community layers each project aligns and which it leaves vacant, and — read across its final column — diagnoses whether the two projects meet on any shared layer. The mapping is built in two moves: the layer-by-layer alignment set out here, and the coupling diagnosis drawn out in the decoupling hypothesis below, whose implications for constitutional resilience are carried into § 7.

Applied to the two Mexican liberalisms, Pegoraro and Rinella's taxonomy of legitimisation sources shows that the contest is not only about who belongs to the people but about which source of authority makes the people's will binding. The analytically decisive insight is this: when two projects activate the same source with incompatible readings — both invoking Tradition, or both claiming the Agreement of the constitutional pact — neither can accuse the other of abandoning the source. Each can only insist that its own reading is the correct one. The conflict becomes irreducible at the level of legitimisation itself, which is precisely why it cannot be settled by pointing to the text. Table 1b (§§ 5–6) maps this across all five sources; the tension column records what is at stake when both projects claim the same one.

Table 1b. Pegoraro and Rinella’s sources applied to the two Mexican liberalisms (§§ 5–6). See Table 1a (§ 3) for the full instrument.

Source (P/R, Ch. II)	Popular liberalism (4T)	Procedural liberalism	Tension when both claim it
TRADITION “Do what the fathers did”	Juárez–Reforma–Revolution as authentic liberal inheritance; opponents as neoporfiristas (§§ 2, 4)	1917 constitutional order as settled founding tradition; autonomous institutions as consolidated achievements	Both claim the same tradition through different lineages: popular emancipation vs. constitutional consolidation. Tradition is internally split (§§ 2, 4).
AGREEMENT “Behave according to the pacts” (pacta sunt servanda)	2018 electoral mandate as direct popular pact; referendums as recurring re-enactment (§ 5)	Constitution as founding compact binding future majorities; the United States–Mexico–Canada Agreement (USMCA) and the Inter-American human-rights system (IACHR) as additional pacts	Electoral pact (2018 majority) vs. constitutional compact (constituent moment). Art. 135 is the arbiter the 4T uses to make the electoral pact override the procedural one (§§ 5–7).
DIVINE / RELIGIOUS “Obey God”	Not formally invoked; moral-redemptive grammar (pueblo bueno / moral redeemer) borrows its emotional architecture (§ 5)	Absent; procedural liberalism is defined by explicit secularism traced to the Reforma	No direct conflict; the 4T’s moral-redemptive register occupies the affective space the secular order formally expelled. Laicism claimed as a liberal tradition by both (§ 5).
REASON “Follow reason” (responsa,	ACTIVELY DISMANTLED: SCJN, INE recoded as	The primary source: separation of powers, SCJN jurisprudencia, and	The central fault line: procedural liberalism concentrates legitimacy here;

Source (P/R, Ch. II)	Popular liberalism (4T)	Procedural liberalism	Tension when both claim it
jurisprudence, expertise)	neoporfirista elites; judicial reform (DOF 15 Sep 2024) replaces expertise with popular election (§ 6)	autonomous regulators as reason institutionalised	the 4T dismantles it via Art. 135. No entrenched core (Glenn, 2014): it can be constitutionally overwritten — and has been (§ 6).
AUTHORITY “Obey the leader” (political/ideological law)	DOMINANT SOURCE: presidency as authentic voice sutures the Ehrlichian fracture; mañaneras as daily re-enactment (§ 5)	Formally rejected: rule of law, not of persons. In practice, technocratic leadership operates a softer version	The Ehrlichian fracture is what the 4T rhetorically dissolves and what procedural liberalism insists must remain visible. Art. 39 sustains both readings (§§ 5–7).
<i>Common law “Follow precedent” [NOT APPLICABLE]</i>	<i>N/A</i>	<i>N/A</i>	<i>Omission is principled: Glenn (2014) confirms Mexico’s civil-law tradition (§ 3). The 2024 judicial reform moved the system further from any common-law analogy (§ 6).</i>
SYNTHESIS Legitimacy profile	Dominant: Tradition + Agreement (electoral pact) + Authority. Reason suppressed. High mobilising capacity; low	Dominant: Reason + Agreement (constitutional compact). Authority formally rejected. High procedural stability; low popular mobilising energy (§§ 5–6)	Constitutionally undecidable on textual grounds alone: the text contains both profiles. Resolution requires winning the political-legitimacy argument — Art. 135

Source (P/R, Ch. II)	Popular liberalism (4T)	Procedural liberalism	Tension when both claim it
	counter-majoritarian resilience (§§ 5–6)		is the only operative procedural arbiter (§ 7).

Gray rows: common-law source (N/A) and synthesis. Sources: Pegoraro and Rinella (2016); CPEUM 1917/2026; Glenn (2014). Author's elaboration.

The decoupling hypothesis

Pegoraro and Rinella's sources of legitimation (§§ 3, 5–6) produce obedience only if the community they address exists and coheres. Returning to Table 3 with this in mind reveals the structural problem: a constitution achieves resilience when it aligns multiple layers of community simultaneously — when the community of belonging, the normative community, the juridical community and the imagined community converge on the same constitutional frame. When these layers decouple — when the community of belonging no longer coincides with the juridical community, or when the moral community actively contests the epistemic community — the probability of constitutional conflict, fragmentation or forced transformation rises sharply. In Mexico, the decoupling is not incidental but structural, and it is what the 4T exploits, constitutionally and lawfully, through Article 135. The final column of Table 3 records this coupling status layer by layer.

Table 3. Community layers, constitutional alignment and structural decoupling (§§ 5–7). After Anderson (1983) and Pegoraro and Rinella (2016).

Community layer	Central question	Popular liberalism (4T)	Procedural liberalism	Coupling status
Community of Belonging	<i>Who are we?</i>	Moral-historical ‘we’; Juarista lineage; fidelity, not status	Abstract citizens; no thick identity claim	Decoupled — 4T holds this register (§ 5)
Imagined Community (Anderson, 1983)	<i>What narrative unites us?</i>	4T as fourth act of national epic; mañaneras as ritual	No equivalent narrative; procedure, not story	Decoupled — narrative asymmetry (§§ 4–5)
Moral Community	<i>What values bind us?</i>	Cartilla Moral; ‘no mentir, no robar’; thick ethics	Rawlsian neutrality: law separated from morality	Decoupled — moral register occupied by 4T (§ 5)
Juridical Community	<i>Who recognises the same constitutional frame?</i>	Claims CPEUM; rewrites it via Art. 135 (§ 7)	CPEUM as binding compact; institutions as guarantors	In dispute — both claim the text (§§ 5–7)

Community layer	Central question	Popular liberalism (4T)	Procedural liberalism	Coupling status
Epistemic Community	<i>Who defers to specialised knowledge?</i>	SCJN, INE recoded as elite; expertise dismantled (§ 6)	Autonomous bodies as reason institutionalised	Decoupled — 4T dismantles; procedural depends on it (§ 6)
Constitutional Community	<i>Who shares a constitutional frame?</i>	Uses frame to remake it; Art. 135 as instrument	Defends existing constitutional architecture	In dispute — asymmetrically (§§ 5–6)
Community of Destiny	<i>Is our future collectively shared?</i>	Each reform existential: transformation or neoporfirismo	No eschatology; procedural project lacks urgency	Decoupled — urgency vs. process (§ 7)
Ontological Community	<i>Who shares a definition of social reality?</i>	Redefines people, nation, democracy (§§ 2, 5)	Accepts existing definitions; no ontological contest	Decoupled — 4T fights at ontological level (§ 2)
SYNTHESIS Resilience profile	—	Aligns: belonging, imagined, moral, destiny, ontological. Gap: juridical, epistemic (§§ 5–6). High	Aligns: juridical, epistemic, constitutional. Gap: belonging, imagined, moral, destiny. High procedural	STRUCTURAL DECOUPLING: non-overlapping layers (§§ 5–7). Resolution: bridge both sets or hegemonic victory. Art. 135 arbitrates; cannot reunite a split ‘we’

Community layer	Central question	Popular liberalism (4T)	Procedural liberalism	Coupling status
		mobilising power; low institutional stability	stability; low popular rootedness	

Coupling status (final column) is colour-coded: red = decoupled (layer held by only one project); orange = in dispute (both projects claim it); blue = the synthesis row. § references direct the reader to the section where each layer is demonstrated. After Anderson (1983) and Pegoraro and Rinella (2016); author's elaboration.

The pattern is stark: popular liberalism aligns the registers that generate obedience in everyday life; procedural liberalism aligns those that generate institutional stability. Both are legitimate in the register they occupy; neither governs the register the other controls. Article 135 can determine which reading wins the supermajority but cannot reunite communities that have ceased to recognise each other as the same ‘we’ — which is the problem the five trajectories of § 7 map.

6. Reforms and Effects

Structural reforms as materialised appropriation

The intra-liberal contest is not merely discursive; it materialises in a sequence of constitutional reforms enacted in 2024, each legible as the popular-liberal reading overriding the procedural-liberal one. The sequence is itself instructive. In April 2022 the executive’s proposed constitutional electoral reform failed to secure the required supermajority; the government responded with the so-called ‘Plan B’, a package of changes to secondary legislation enacted in March 2023, which the Supreme Court struck down in two rulings—*Acción de Inconstitucionalidad* 29/2023 on 8 May 2023 and 71/2023 on 22 June 2023—for defects in the legislative procedure. The executive then announced, on 5 February 2024, a ‘Plan C’ of some twenty constitutional reforms, this time pursued through the Article 135 amendment power itself. The lesson the government drew is the lesson this article emphasises: where ordinary legislation can be invalidated by the courts as the guardians of the reason component, constitutional amendment by supermajority cannot, because Article 135 provides no entrenched core to invoke against it.

The electoral front is paradigmatic of how the conflict reframes legitimacy. During the Plan B episode the executive’s own legal office argued that, were the Court to invalidate the reform on procedural grounds, it would be reducing itself to ‘a mere office of procedural verification at the service of parliamentary minorities’—a near-perfect statement of the recoding this article describes, in which the reason component (technical, law-bound, counter-majoritarian review) is reframed as an elitist obstacle to the popular will. The substantive electoral proposals—reducing the number of INE councillors, dismantling the professional electoral service, and electing electoral councillors and tribunal magistrates by popular vote—subordinate technical oversight to majoritarian control in the name of returning electoral power to the people.

The judicial reform was enacted by decree published in the *Diario Oficial de la Federación* on 15 September 2024, in force the following day, amending nineteen articles of the Constitution (CPEUM, 1917/2026, arts. 17, 94–101, 105, 107, among others). It introduced the popular election of ministers, circuit magistrates and district judges; reduced the Supreme Court from eleven to nine ministers; and created a Tribunal of Judicial Discipline. Here the civil-law character of the order is directly at stake: the reform reaches into the very mechanisms of judicial selection and of *jurisprudencia*—it even redefines when the Court’s reasoning becomes binding—thereby transferring the authority of law-bound expertise to the authority of popular election. This is the reason component of the legitimacy vector being rewritten in the text itself.

The militarisation front was enacted by decree published on 30 September 2024, in force on 1 October 2024, amending twelve articles (CPEUM, 1917/2026, arts. 13, 16, 21, 32, 55, 73, 76, 78, 82, 89, 123, 129) to incorporate the National Guard into the Secretariat of National Defence (SEDENA) and remove its civilian character. The episode displays the mechanism with unusual clarity: the Supreme Court had previously invalidated the administrative transfer of the National Guard to military command precisely because the Constitution mandated a civilian force, and the constitutional amendment was the means of overriding that ruling—the popular-liberal majority rewriting the text to dissolve a counter-majoritarian limit (see Figures 1 and 2).

The pattern extended to the autonomous regulators. The ‘organic simplification’ decree published on 20 December 2024, in force the next day, extinguished seven autonomous bodies—among them the transparency institute (Instituto Nacional de Transparencia, INAI), the competition commission (Comisión Federal de Competencia Económica, COFECE), the telecommunications institute (Instituto Federal de Telecomunicaciones, IFT) and the social-policy evaluation council (Consejo Nacional de Evaluación de la Política de Desarrollo Social, CONEVAL)—transferring their functions to executive departments. Notably, the decree expressly invokes Article 135 and the ratifying majority of state legislatures, confirming in the text itself that the dismantling of the autonomous architecture proceeded through, not around, the amendment power.

In each case the structure is the same: a procedural-liberal guarantee is reinterpreted as an instrument of proprietary liberalism, and its weakening is presented as the fulfilment, not the betrayal, of the popular-liberal inheritance. This is why the reforms can proceed within constitutional and legal forms while altering the substance of the constitutional order—the mechanism identified in Section 5, now observed in dated, documented institutional practice. Table 4 summarises the sequence.

Table 4. Constitutional reforms of the ‘Plan C’, 2024–2025 (all enacted via Article 135).

Reform	DOF date	Articles / content	Legitimacy effect
Judicial reform	15 Sep 2024	19 articles (17, 94–101, 105, 107...); popular election of ministers, magistrates and judges; SCJN reduced 11→9; Tribunal of Judicial Discipline created	Reason ↓ (judicial independence, jurisprudencia)
National Guard	30 Sep 2024	12 articles (13, 16, 21, 32, 55, 73, 76, 78, 82, 89, 123, 129); Guard incorporated into SEDENA; civilian character removed; overrides prior SCJN ruling	Reason ↓ / Authority ↑ (order, armed forces)
Organic simplification	20 Dec 2024	Art. 28 et al.; extinguishes 7 autonomous bodies (INAI, COFECE, IFT, CRE, CNH, CONEVAL, MEJOREDU); functions to the Executive; expressly invokes Art. 135	Reason ↓ (autonomous expert oversight)
Sovereignty / non-intervention	1 Apr 2025	Art. 40; new paragraphs against foreign intervention in elections and external investigation	Tradition/Consent ↑ (national-popular sovereignty)

Source: Diario Oficial de la Federación; author’s elaboration. ‘Reason’ = technical-codified, counter-majoritarian component of the legitimacy vector.

The cartoons as condensed frames: moral constitution versus political constitution

The two caricatures by Juan Alarcón published in the ‘Tal Cual’ section of *El Heraldo de México* (Figures 1 and 2) are not illustrations of the argument but data for it: they function as condensed interpretive frames that make the intra-liberal conflict legible to a mass public with a precision that extended prose rarely achieves.

Figure 1 depicts the *Constitución Política de los Estados Unidos Mexicanos* of 1917—rendered as a large, old, austere book seated behind an office desk—telling a smaller, modern, alarmed book labelled ‘*Constitución Moral*’: ‘Me desocupas inmediatamente esta oficina’ (‘You vacate this office immediately’). The frame mobilised is one of institutional displacement: the 4T’s ‘*Constitución Moral*’—a project announced by López Obrador in early 2019 as a moral charter grounding the administration’s conduct—is shown attempting to occupy the institutional space of the juridical Constitution. Alarcón draws the 1917 document as the legitimate authority evicting a usurper. In Pegoraro and Rinella’s terms, the cartoon stages the conflict between the ‘follow reason’ source (the civil-law Constitution as the binding codified text) and the ‘obey the leader’ source (the moral charter as the executive’s ideological law). The humour works because both documents are cast as the ‘real’ Constitution by their respective claimants: the conflict is internal to the constitutional space, not external to it.



Figure 1. Alarcón, Juan (5 February 2019). “Tal cual” [Cartoon]. *El Heraldo de México*. Self-translation: “You immediately vacate this office.” The *Constitución Política* of 1917 evicts the ‘*Constitución Moral*’ from the institutional office

Figure 2 (18 March 2021) radicalises the frame. A large ‘Constitución Política’ physically displaces a small ‘Cartilla Moral’—the Alfonso Reyes handbook mass-distributed by the government from December 2018—with the command: ‘Véte, yo me encargo’ (‘Go away, I’ll take care of it’). The Cartilla Moral responds: ‘inútil’. The scene has shifted to a quasi-sacred chamber, evoking the ‘obey God’ source that Pegoraro and Rinella identify: the moral-redemptive register the secular order formally expelled. The Cartilla Moral’s retort is precisely the word the popular-liberal project uses to dismiss the INE, the SCJN and the autonomous regulators. Alarcón inverts it: here the moral instrument calls the juridical Constitution useless, and the Constitution that expels it.



Figure 2. Alarcón, Juan (18 March 2021). “Constitu...¿Qué?” [Cartoon]. *El Heraldo de México*. Self-translation: “Go away, I’ll take care of it.” The *Constitución Política* displaces the *Cartilla Moral*, which responds ‘inútil’.

Read together through Todorov’s alterity axis, the two cartoons trace a movement. In Figure 1, the Constitution retains its institutional authority and the ‘Moral Constitution’ is the subordinate intruder—a praxeological assimilation attempt that fails. In Figure 2, the *Cartilla Moral* has internalised the ‘inútil’ epithet and uses it against the juridical order—the moment at which the moral other refuses the epistemic terms of its own exclusion and names the excluding institution as the obstacle. The two figures thus capture, in sequential visual form, the intra-liberal contest this article analyses: not a conflict between the Constitution and something outside it, but a conflict over which register of authority—technical-codified reason or moral-popular authority—defines what the Constitution is for.

Effects: polarisation, eroded trust, and the contested public sphere

The social effects follow the logic of the moral-binary frame: polarisation deepens as opposition becomes moral condemnation, trust in counter-majoritarian institutions erodes in a self-reinforcing loop, and digital media amplify both. Yet closure is incomplete. Civil society—mobilisations in defence of the INE, feminist and indigenous organisations, independent media—sustains a counter-reading grounded in the same text: the 1917 rights commitments, the 2011 human-rights reform, and the principle of institutional autonomy. The Constitution thus remains a contested field rather than a closed instrument, and this multivocality is the precondition for the trajectories mapped in § 7.

7. Foresight: Trajectories of the Contest

The constitutional text as evidence, not backdrop

The trajectories of the intra-liberal contest are constrained and enabled by two constitutional provisions. The first is Article 39 — unchanged since 1917 — which declares that sovereignty resides essentially and originally in the people, who have at all times the inalienable right to alter the form of their government (CPEUM, 1917/2026, art. 39). The 4T's discourse of the *pueblo soberano* is therefore not an extra-constitutional imposition but a literal reactivation of the founding text; both liberalisms can cite it. The second is Article 135, the amendment rule: the Constitution may be added to or reformed when two-thirds of those present in Congress agree and a majority of state legislatures ratify (CPEUM, 1917/2026, art. 135). This is the hinge on which every trajectory turns, and its civil-law character is essential to the analysis. In a codified order without the entrenched, judicially protected fundamental law of some common-law constitutionalisms — and, as Glenn (2014) notes, without the precedent-driven adjudication that elsewhere accretes constitutional meaning case by case — the written amendment rule is the master instrument of constitutional change. Because Article 135 sets a legislative supermajority rather than entrenched, unamendable clauses — it contains no 'eternity clause' shielding institutional autonomy or the separation of powers — a movement that secures a two-thirds congressional bloc can lawfully rewrite the counter-majoritarian architecture itself. The 4T's constitutional reforms are not ruptures of legality; they are exercises of Article 135. The contest is being conducted through the amendment power, not around it.

The claim that Article 135 contains no entrenched core requires one qualification, itself part of the contest rather than external to it. Mexican doctrine has long debated whether the reform power is subject to implicit material limits — an unamendable core (popular sovereignty,

separation of powers, the human-rights regime) that even a supermajority could not lawfully abolish. The Suprema Corte de Justicia de la Nación has at moments gestured toward a material review of amendments without ever consolidating it into effective doctrine; the prevailing position leaves Article 135 formally unlimited. What matters here is less whether such limits exist in the abstract than what invoking them does. The doctrine of implicit limits is not a neutral technical datum above the conflict; it is itself a constitutional ideology — an instrument of procedural liberalism, which reaches for an unamendable core precisely when it has lost the supermajority Article 135 makes sovereign, and asks a counter-majoritarian court to override a majoritarian amendment. Popular liberalism denies these limits for the symmetrical reason: to affirm them would concede that an élite tribunal, not the pueblo soberano of Article 39, holds the last word. The two positions are not a correct reading and a mistaken one but rival ideologies of the reform power, each grounded in a different CLV source — reason and the juridical community on one side, consent and the community of belonging on the other. The article's premise of a nearly unlimited Article 135 therefore holds as a description of operative constitutional practice, while the doctrinal dispute over implicit limits is best read not as a gap in the analysis but as one more front of the same intra-liberal contest: who may set limits to the amendment power is itself contested along the axis this article maps.

Recent reforms as textual evidence

That this is not hypothetical is shown by the text in its current state. The reactivation of Article 39's sovereigntist register is visible in the new paragraphs added to Article 40 on 1 April 2025, which constitutionalise a defence of national sovereignty against foreign intervention in elections and external investigation—the national-popular idiom written directly into the form-of-government clause (CPEUM, 1917/2026, art. 40). The judicial reform, likewise, did not bypass the Constitution; it amended it, reaching, as noted, into the civil-law mechanism of jurisprudencia and judicial selection. Each instance confirms the mechanism identified in Section 5: the popular-liberal reading advancing by lawful amendment, with Article 135 as its instrument and Article 39 as its justification. The text is not a stable backdrop against which politics happens; it is itself being rewritten by the contest the article analyses.

Five trajectories

Against this textual backdrop, five trajectories are analytically distinguishable, each a different configuration of the legitimacy vector and the alterity boundary — and, crucially, each a different resolution of the structural decoupling mapped in Table 3. A resilient trajectory would

see counter-majoritarian institutions absorb the popular-liberal challenge and rebalance the legitimacy vector. This is the only trajectory in which the decoupling is reversed: it would require popular liberalism to construct or accept juridical and epistemic communities — law-bound, technically competent institutions — while procedural liberalism extends its reach into the registers of belonging, narrative and moral community that it has so far left vacant. Under Article 135, resilience cannot be secured by judicial entrenchment alone; it requires winning the supermajority argument by persuading enough of the electorate that the procedural-liberal reading is also a popular one — that the people of Article 39 are served, not betrayed, by counter-majoritarian institutions.

A polarised trajectory entrenches the decoupling permanently: two publics, each citing Article 39 for its own reading, each aligned on non-overlapping community layers, neither able to govern the other's consent. A fragmented trajectory follows if the epistemic and juridical layers dissolve without replacement — if the autonomous architecture is dismantled faster than any new institutional settlement can stabilise it, leaving neither project with enough of a shared frame to mediate disagreement. A transformative trajectory would consolidate the popular-liberal reading into a durable new constitutional settlement through sustained use of Article 135 — but only if it generated its own epistemic and juridical community layers: new institutions combining popular legitimacy with technical competence, without which the transformative path collapses into the fragmented one. A post-national configuration, finally, would emerge if transnational community layers — the governance communities of the USMCA, the rights communities of the inter-American system — partially substitute for the decoupled national layers; the 2026 anti-intervention provisions of Article 40 are best read as a constitutional defence against precisely this trajectory.

Which path prevails depends less on the abstract strength of either liberalism than on whether the constitutional order can re-establish the reason component — the technical-codified, law-bound authority that its civil-law tradition makes central — which the current appropriation suppresses. And, given the community-layer analysis of Table 3, on whether any political project can bridge the belonging and juridical registers that the conflict has pulled apart. Article 135 is the only operative procedural arbiter; but procedural arbitration cannot by itself reunite communities that have ceased to recognise each other as the same 'we'.

8. Conclusion

Mexico's constitutional conflict is not what it appears. It looks like a battle between liberalism and its enemies; it is in fact a war within liberalism itself — a contest over which of two rival appropriations of the same tradition defines who counts as 'the people,' why citizens obey, and what collective the constitution is asked to sustain. The 4T does not reject the liberal-republican inheritance; it claims it, wielding a popular, Juarista lineage against a proprietary, procedural one it codes as neoporfirista. Both projects cite Article 39. Both invoke the founding text. The text is not the solution to the conflict; it is its terrain.

What the four frameworks applied here — comparative law, constitutional legitimation theory, the sociology of alterity, and the theory of imagined communities — diagnose together is a structural decoupling (§§ 5–6): the popular-liberal project aligns the community layers that generate obedience in everyday life (belonging, narrative, moral community, destiny) while the procedural-liberal project aligns those that generate stability in institutional life (law, expertise, constitutional architecture). The two projects occupy non-overlapping registers. This is why the conflict is resistant to procedural resolution: Article 135 can determine which reading wins the supermajority, but it cannot reunite communities that have ceased to recognise each other as the same 'we.' The five trajectories of § 7 — resilient, polarised, fragmented, transformative, post-national — map what happens depending on whether any political project manages to bridge those registers or whether the decoupling becomes permanent.

The Mexican case offers the comparative literature something precise: a populism that advances by appropriating the liberal lineage rather than negating it — a pattern the standard illiberalism-as-negation model cannot capture because it was calibrated on cases where the two sides speak different languages. In Mexico, both sides speak liberalism; the contest is over which dialect governs. Defending constitutional democracy in this context requires more than preserving procedures. It requires contesting the meaning of the liberal-national inheritance itself — winning the argument that the sovereign people of Article 39 are better served by law-bound institutions than by the unmediated will of any single claimant, however popular.

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Figures

Figures 1 and 2 appear in Section 6 at the marked points. Insert the image file at each placeholder. Captions and full analytical notes are provided in the text.

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